

Smt Anitha @ Geetha D/O Arasappa vs Sri M Nagaraja on 2 February, 2011

Bench: K.L.Manjunath, H.G.Ramesh

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE
DATED THIS THE 2ND DAY OF FEBRUARY, 2011

PRESENT

THE HON'BLE MR. JUSTICE K.L. MANJUNATH

AND

THE HON'BLE MR. JUSTICE H.G. RAMESH
MISC. FIRST APPEAL No.8357/2003
BETWEEN:

Anitha @ Geetha w/o M. Nagaraja
D/O Arasappa, 30 years, VV²/HS
R/O 2299, MIG, 6th Phase, Yelafanka New Town,
Bangalore, 3rd Stage, 1st Phase, Yelafanka New Town, Bangalore.

APPELLANT
(By Advocate Sri N. Veerabhadraiah)

AND:

M. Nagaraja s/o late Munim

Budappa, 60 years,
1st Stage, 1st Phase, Yelafanka New Town, Bangalore,

Municipal Office Road,

Yelafanka, Bangalore. .. RESPONDENT

(By Advocate Sri N. Veerabhadraiah) This MFA is filed under Sec.19(1) of Family Courts Act against the judgment and decree dated 21.12.2006 passed in M C.No.1426[2005] of the Family Court, Bangalore, in the case of Anitha @ Geetha D/O Arasappa vs Sri M Nagaraja.

3. allowing the petition filed under Sec.13(ia) & (ib) of the Hindu Marriage Act for divorce. This Appeal is coming on for final hearing this day, MANJUNATH J. delivered the following judgment: The judgment of the Family Court dated 21.12.2006 passed in M C.No.1426[2005] is called in question in this appeal, 2

2. Appellant is the legally married wife of the respondent. Petition was filed by the respondent to grant a decree of divorce on the ground of cruelty, and of desertion. According to the respondent, marriage between him and the appellant was solemnized on 10.12.2001 at Akkayamma Betta, Vv_Kali Eamha'aimple, Uttanahalli, Bangalore North taluk and thereafter they lived together at iyalehanka for a short period. According to him, respondent has been living separately without any cause from 23.5.2002 and during her short period she has humiliated the respondent and tortured him and his family members. Therefore, on these two grounds, petition was filed.

3. Appellant's wife was placed ex-parte since she did not contest the case in spite of receipt of notice from the Family Court. Therefore, the respondent's appeal is filed.

recording the evidence of husband/respondent has allowed. the petition on the ground of desertion and cruelty. Therefore, the respondent's appeal is filed.

4. According to the appellant's counsel, appellant is not much educated, she was not aware of the consequences of receipt of court summons. Therefore, she did not contest the case. However, he contends that on merits, trial court was required to dismiss the petition of the respondent on the following reasons: According to him, when respondent contends that appellant has been residing separately from 23.3.2002, he has filed the case even without making any attempt to secure the appellant to matrimonial home and "having failed to do so, respondent cannot contend that appellant has deserted him. Therefore, the ground of desertion is not available to the respondent. He also contends that marriage between the parties was solemnized on 10.12.2001 and the respondent contends that from 23.5.2002 respondent is residing separately with her parents. He goes without saying that for a period of 6 months she resided with her husband during that period humiliation or tort to her by the respondent or his family members has not been explained and there is no positive evidence to show to consider the same as either mental or physical cruelty. Therefore, he requests the court to set aside the trial court judgment passed by the Family Court and remit the matter to the trial court for fresh consideration. J70 §y

4. Learned counsel for the respondent supporting the judgment of the trial court contends that the evidence of PW-1 is not challenged, trial court is justified, in accepting the evidence of the respondent. In the circumstances, he requests the court to dismiss the appeal.

5. Having heard the parties, the court is of the opinion that the only point to be considered in this appeal is "Whether the decree of divorce granted on the ground of desertion and cruelty by the court below requires to be interfered with?"

6. It is not in dispute that the marriage between the parties was solemnized on 10.12.2001.

According to the respondent, they have lived together for few days. Within a period of few days there cannot be any physical or mental ill-treatment given by the appellant to the respondent in the absence of any evidence. His evidence is

is not satisfactory. In addition, an opportunity is required to be given to the appellant to substantiate her case. Therefore, we have to set aside the judgment and decree passed in suit; to the decree granted on the ground of desertion is concerned, as rightly pointed out by the appellant's counsel; if really respondent is living separately from her, in all fairness as a dutiful husband has required to issue notice or send her to get the appellant to the matrimonial home. Having not done so, she cannot maintain a petition for divorce on the ground of desertion. In the circumstances, we are of the opinion that the matter is required to be reconsidered by the court below. 7; *.' Accordingly the appeal is allowed. Judgment and decree passed in MC No.1426/2005 dated

23.12.2006 by the P. Judge, Family Court, Bangalore is hereby set aside. Matter is remanded to the trial court for fresh considerations. We direct both the parties to appear before the Family Court at Bangalore on 3.3.2011 and there is no necessity for the Family Court to issue fresh notice to the parties.

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